



24 May 2026

Senator the Honourable Michaelia Cash
Shadow Attorney-General of Australia
Leader of the Opposition in the Senate
Parliament House
Canberra ACT 2600

Dear Senator Cash,

**RE: Request for Parliamentary Support — ConsentVault Legal Reform Petition
Bail Surety Industry Reform, Legal Defence Insurance & Digital Consent Evidence
Admissibility**

I write to you in your capacity as Shadow Attorney-General of Australia and Leader of the Opposition in the Senate, to request your support for a parliamentary petition and three legislative reforms that address a critical and growing injustice in Australia's criminal justice system.

ConsentVault is an Australian technology company that has built the nation's first legally-structured mutual consent recording platform. Our platform allows individuals to create timestamped, GPS-verified, biometrically confirmed digital consent records — providing contemporaneous evidence in situations where consent is later disputed.

THE CRISIS WE ARE RESPONDING TO

The data is stark. When both parties agree that a sexual encounter occurred and the only question before the court is whether consent was given, the case becomes entirely dependent on witness credibility — a 'he said, she said' situation with no objective evidence. In these circumstances:

- 77% of sexual assault cases that reach a court ruling result in a guilty outcome (ABS, 2021)
- The maximum sentence is 14 years imprisonment with a standard non-parole period of 7 years
- 62% of wrongful convictions involve false allegations or perjury (National Registry of Exonerations)
- Men are remaining imprisoned on remand — sometimes for months — because they cannot find a surety for bail
- Men are accepting plea deals to lesser charges not because they are guilty, but because they cannot afford to fight the charge

THREE REFORMS WE ARE REQUESTING PARLIAMENTARY SUPPORT FOR

Reform 1: Legal Defence Insurance — The Accused Persons Defence Insurance Act

Currently, no insurance product in Australia covers criminal defence costs for persons accused of sexual offences. Standard Legal Expense Insurance explicitly excludes this. We are requesting

legislation creating a regulated category of Accused Persons Defence Insurance — covering up to \$100,000 in legal fees, regulated by APRA and provided by licensed insurers.

Reform 2: Regulated Bail Surety Industry — The Commercial Bail Reform Act

Australia is one of the few common law countries without a commercial bail surety industry. Men who are granted bail but cannot find a personal surety remain imprisoned on remand, often for months. We are requesting ASIC-regulated commercial bail surety companies be permitted to operate in Australia, with consumer protections and maximum fee schedules set by regulation.

Reform 3: Digital Consent Evidence — Evidence Amendment (Digital Consent) Act

The Evidence Act 1995 (Cth) contains no specific provision for contemporaneous digital consent records. We are requesting an amendment mandating the admissibility of authenticated digital consent records — including timestamped video declarations, GPS verification, and biometric identification — as supporting evidence in sexual consent proceedings.

OUR SPECIFIC REQUEST

We are requesting that you and your office consider the following actions:

1. Present the ConsentVault Parliamentary Petition to the Senate once we reach 10,000 verified signatures — triggering a mandatory Legislative Review Committee investigation.
2. Introduce the three above-named bills as Private Member's Bills in the Senate — to force a parliamentary debate and place the government on record.
3. Raise these issues in Senate Estimates — asking the Attorney-General's Department what research has been conducted into legal access barriers for persons accused of sexual offences.
4. Participate in a joint media event with our team to present the petition — which we believe would generate significant national media coverage around legal access and the presumption of innocence.

We have enclosed a full briefing document including the complete data set, legislative drafting notes for each bill, and the current petition with signature verification methodology. We would welcome the opportunity to brief you and your staff in person — in Canberra, Perth, or via video conference — at a time that suits your office.

Senator Cash, your background as a senior commercial lawyer and your experience as Attorney-General of Australia uniquely position you to understand both the legal substance and the political significance of this reform. We believe this is an issue that transcends party lines — it is fundamentally about the presumption of innocence and access to justice for all Australians.

We look forward to hearing from your office at your earliest convenience.

Yours faithfully,

John Morgan

Founder & Director, ConsentVault Pty Ltd

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*ENCLOSURES: (1) ConsentVault Opposition Briefing Document (2) Petition Wording & Signature Verification Methodology
(3) Draft Legislative Framework — Three Proposed Bills*